

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

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LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: FRIDAY, MARCH 7, 2025

TIME: 9:00 A.M.

Please Read Carefully as Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: Line #/name/party. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel shall comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are on The Following Pages.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	19CV357522	Le-Chi Vu vs Daniel Vu	Order of Examination continued from 11/14/2024 for foreign language interpreter. No tentative ruling
LINE 2	22CV409026	Karl Schisler vs John Doe (Trial Date 3/24/2025)	Defendant's Motion to Compel further mental health examination of Plaintiff (Special set by order of Judge) is DENIED. Court awards monetary sanctions. See tentative ruling below for details. Plaintiff's Counsel to prepare order.
LINE 3	20CV369931	Kathleen Krier vs Palo Alto Unified School District (Action filed 8/26/2020)	Plaintiff's Motion for leave to file a Third Amended Complaint is DENIED. See tentative ruling below for details. Defendant's Counsel to prepare order. Parties are ordered to meet and confer with regard to new trial dates, and to appear in Court for Trial Setting on 3/7/2025. Counsel shall provide to the Court at least two dates for commencement of trial not later than August 11, 2025, when counsel, parties, and experts will be available.
LINE 4	22CV394432	City of San Jose vs Maria Garcia	Plaintiff City of San Jose's Motion for Permanent Injunction and Entry of Default Judgment. Not Opposed. Court orders issuance of Permanent Injunction, penalties and attorneys fees. See tentative ruling below for details. Moving Party to prepare Order, Permanent Injunction and Judgment.
LINE 5	23CV416289	A & S Enterprises, LLC et al vs MELISSA KOZAR et al (Trial Date 11/3/2025)	Motion of Attorney to Withdraw No Opposition. Motion to Withdraw is GRANTED. Corporate Defendants are admonished that they must be represented by counsel in all proceedings before the Court. Court will sign Proposed Order previously filed.
LINE 6	24CV433325	FPP MB, LLC vs Jennifer Lewis et al	Re-set and Continued for Hearing by Hon. Amber Rosen on March 17, 2025 at 10 a.m. in Dept. 2. Courtesy copies of any reply briefs should be emailed to Department2@scscourt.org.

LINE #	CASE #	CASE TITLE	RULING
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LINE 8			
LINE 9			
LINE 10			

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Calendar Line 2

22CV409026

Karl Schisler vs John Doe

(Trial Date 3/24/2025)

Defendant's Motion to Compel a Further Psychiatric Evaluation of Plaintiff is DENIED. Court finds that Moving Party has failed to show good cause for any further mental IME of any duration of the Plaintiff.

This case was filed in September 2022. Defendant was served on July 28, 2023. At the trial setting conference on May 21, 2024, the case was set for trial 10 months later -- to commence on March 24, 2025.

Without making a motion or seeking leave of Court, Defendant's counsel sought a psychiatric IME of Plaintiff by written demand. Legitimate objections were made by Plaintiff's counsel to the proposed duration and scope of questioning. It appeared that after considerable meet and confer between counsel, Plaintiff's counsel agreed to proceed with the psych IME with the understanding that: 1) the IME was to be limited to Plaintiff's emotional distress and psychiatric injuries, and was not for the purpose of discussing the underlying facts of the case; 2) the duration was not to exceed six hours -- and Plaintiff's counsel maintained that 2.5 hours should be sufficient; and 3) Defendant's counsel was not to participate in the psychiatric evaluation. Defendant's contention that there was no mutual understanding to that effect, is not credible. Had there not been such an understanding, it appears to the Court that Plaintiff and his counsel would not have agreed to participate in the 6+ hours of interview that occurred in late November 2024, and Defendant would have been required to file a motion at that time to order an IME, and leave to the Court to make orders with regard to the terms.

The foregoing limitations were entirely reasonable given the fact that Plaintiff had already sat for deposition and answered interrogatories, in which discovery he had already provided information regarding the events and injuries which led to the filing of the current claims. Further, it is undisputed that Dr. Shaw, the designated Defense psychiatric examiner, had been provided with and reviewed Plaintiff's deposition, the deposition of Plaintiff's sister and "other documents," and acknowledged to Plaintiff his familiarity of the facts and events upon which Plaintiff was basing his claims.

Further, Plaintiff never waived objections to discussion of his sexual history and Defendant made no motion prior to the IME for inquiry regarding Plaintiff's sexual history with individuals other than Defendant, as required under CCP section 2017.220.

The IME by Dr. Shaw occurred in November 2024, shortly before the Thanksgiving holiday, and proceeded (via Zoom) for 6.25 hours of interview, without lunch break. The Court would never impose such a burden on a witness, and finds it unreasonable that a psych IME would proceed in such a manner. Having reviewed the declarations, the Court finds that Defendant's expert had more than adequate time and opportunity to ask questions relating to Plaintiff's

emotional and mental distress, and assess alternate causes for those conditions. It appears that Dr. Shaw was not made aware of the limitations on his questioning that Plaintiff's counsel had communicated to Defendant's counsel, and which Plaintiff understood would be applicable, before commencing the IME. The Court assumes that is the case, as opposed to any deliberate disregard of those limits. Further, it is unfortunate that Dr. Shaw was attempting to communicate with Defendant's counsel while conducting the interview of Plaintiff. Those events, and the resulting impact they had on Plaintiff's willingness to be open and expressive, as opposed to guarded or occasionally argumentative, might explain why the examination went longer than the 2.5 to 3 hours typical for such proceedings. It does not, however, provide good cause for a further IME examination to take place just ten days before trial is to commence, when there has already been over six hours of examination.

There is no justification for any inquiry into Plaintiff's sexual history or sexual relationship with his spouse. Defendant entirely disregarded CCP section 2017.220 before proceeding with his IME by written demand, and provides no basis for the court to allow it now.

Finally, the Court finds no reason why Defendant's counsel waited until 90 days after the IME, and 30 days after Plaintiff's counsel made clear that they would not agree to a further IME, to bring this motion. Defendant inexplicably waited another month, until just barely 30 days prior to trial to file his ex parte application to shorten time to compel an IME to take place after the discovery cut-off. The burden and expense on Plaintiff to oppose this motion which is being heard less than thirty days before trial is not overlooked.

Pursuant to CCP §§ 2017.220(b), 2023.010(a), (b), (c) and (h), the Court orders sanctions payable by Defendant to Plaintiff's counsel in the amount of \$3,000. (6 hours x \$500/hour) for having to oppose this motion, to be paid in 30 days. The Court finds that counsel for both Parties engaged in reasonable, and good faith meet and confer efforts, and therefore does not order sanctions against either side for the failure to meet and confer.

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Calendar Line 3

20CV369931

Kathleen Krier v. Palo Alto Unified School District

Plaintiff commenced this action for discrimination, harassment and retaliation in connection with employment on August 26, 2020. The COVID emergency rules do not appear to be applicable, and so trial in this action must commence on or before August 26, 2025. Plaintiff's original complaint, and two successive amendments have all been based on the same essential facts – that she was recruited and hired by Defendant Palo Alto Unified School District (“PAUSD”) on a 1 year contract to teach comp sci and coach the robotics team at Palo Alto High School for the 2018/2019 academic year. She relocated from Berkeley to Palo Alto, and resigned in October 2018.

Eighteen months after filing, Plaintiff filed a First Amended Complaint on February 18, 2022, served Defendant and almost immediately filed (by stipulation) her Second Amended

Complaint on May 16, 2022. Over one year ago, on February 21, 2024, the case was set for trial to commence nine months later, on November 25, 2024.

For over four years, Plaintiff was the sole Plaintiff in the action. It appears that less than 90 days before the scheduled trial date, Plaintiff's counsel stated that they had "two other Plaintiffs" and proposed that their claims be joined to this action. As the Parties were engaged in mediation, and discovery was not yet complete, on October 17, 2024, the Parties agreed to vacate the November 25, 2024 trial date, and return for a new Trial Setting Conference on December 10, 2024.

On December 3, 2024, Plaintiff filed her Proposed Third Amended Complaint and request to hear on shortened time the Motion for Leave to Amend. Courts generally grant leave to amend liberally, particularly where leave to amend is sought to add newly discovered facts, theories or remedies brought to light in the course of discovery, or to conform the pleadings to proof. However, the Court must balance against the policy which favors only one trial of related facts and claims, on the one hand, the burden, expense and delay that permitting such amendment on the other. In this case, the Court finds that there is no benefit to joining two individual Plaintiffs with separate claims (and to which the Defendant has as yet un-plead and un-litigated defenses) to a case that has been pending in this Court for over four-and-one-half years.

Plaintiff waited 18 months to serve her original complaint. Now almost three years later, and almost five years after commencing the action, she seeks to add two new Plaintiffs who were employed by Defendant in different employment positions, complaining about harassment or discrimination by different individuals, on different bases. Other than alleging discrimination against the same employer in the same large workplace, there is no apparent substantial commonality of occurrences or events, decision-makers or witnesses. As Defendant points out, there are defenses regarding exhaustion of administrative remedies and statutes of limitation which may apply to these new proposed plaintiffs, and which would require further meet and confer, further amendment and demurrer. These new Plaintiffs are alleging facts and instances that are almost seven years past, and as to which there has been no formal discovery. The Court notes that there have already been delays in completing discovery in Plaintiff's single plaintiff case that delayed the trial date previously set in November 2024.

Leave to amend is DENIED. Counsel are ordered to meet and confer re trial dates

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Calendar Line 4

22CV394432

City of San Jose v. Maria Garcia, et al.

On February 14, 2022, Plaintiff City of San Jose ("Plaintiff" or the "City") filed a complaint for public nuisance based on Defendant Maria Garcia's frequent and repeated noise violations, numerous vehicles and after-hours partying starting in May 2021. On February 17, 2022 the Court issued a TRO/OSC re Preliminary Injunction, which was continued for hearing from March 9, 2022 to May 11, 2022 (based on Plaintiff's representation that she wanted to

cooperate), to June 1, 2022 (on the condition that the TRO was modified to address multiple additional noise and parking violations as documented in declarations filed on May 3, 2022) to June 23, 2022 (over the City's objections, as Plaintiff claimed medical issues).

On June 23, 2022, the Court issued a preliminary injunction (see Order filed 8/25/2022). Thereafter, as established by the Declarations filed with the Court by SJPd Sgt. Brian Winco there were numerous violations of the injunction, the filing of an OSC re Contempt by the City and criminal contempt proceedings.

On November 25, 2023, the City filed its First Amended Complaint, based on allegations that Defendant Maria Garcia had fraudulently transferred title to the property to Gilberto Garcia, in order to attempt to avoid compliance with the Preliminary Injunction, and to allege the further instances of noise and parking violations that had occurred since the issuance of the TRO. On January 23, 2024 and March 8, 2024, the Defaults of Defendants were entered by the Clerk of the Court.

On November 26, 2024, the City filed the current Motion for Permanent Injunction and for Entry of Default Judgment. In support of the Judgment, the City has submitted the declaration of counsel in support of \$20,307.11 in attorneys' fees and costs. The City further requests Judgment for \$65,000 in statutory penalties (\$2,500/violation/day). No written opposition has been filed thereto.

Having reviewed the papers and pleadings in support of the matter, and the prior findings and orders of this Court, and good cause appearing therefore, the Court finds for the moving Party and orders that a Judgment issue as follows: 1) the terms of the current Preliminary Injunction (filed 8/25/2022) shall be made permanent as against Defendants Maria I Garcia and Gilberto Garcia; and 2) Said Defendants (jointly and severally) shall pay to the City of San Jose the sum of \$65,000 as and for penalties for their statutory violations; and \$20,307.11 as and for reasonable attorneys' fees and costs per statute, which amounts shall be due and payable 30 days after Notice of Entry of Judgment. No bond is required.

Moving Party to prepare Order for Entry of Permanent Injunction and Judgment; Permanent Injunction; and Judgment.

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